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Case Number: BC570652 Hearing Date: August 31, 2026 Dept: 509

California Company LLC v. Jeffery E Stevens, et al.

MOTION TO VACATE DISMISSAL

MOVING PARTY: Plaintiff California Company LLC

RESPONDING PARTY(S): None

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On January 17, 2015, Plaintiff California Company LLC (Plaintiff) filed this action.

On November 9, 2018, the Court granted Plaintiff's former counsel's motion to be relieved and noted that the action would be dismissed on December 6, 2018, if Plaintiff failed to appear. (11/9/18 Order.)

On December 6, 2018, the Court dismissed this action after Plaintiff failed to appear at the hearing. In the hearing, the Court was advised "the manager for the Plaintiff was indicted and has absconded the country." (12/6/18, Minute Order.)

Now, Plaintiff moves to vacate the dismissal. No party filed an opposition. [FN 1]

TENTATIVE RULING:

Plaintiff's Motion to Vacate Dismissal is DENIED WITH PREJUDICE.

DISCUSSION:

Motion To Vacate and Set Aside Dismissal

I. Legal Standard

Code of Civil Procedure, section 473(d) provides that “[t]he court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.” “[I]nclusion of the word “may” in the language of section 473, subdivision (d) makes it clear that a trial court retains discretion to grant or deny a motion to set aside a void judgment. [Citation.] However, the trial court has no statutory power under section 473, subdivision (d) to set aside a judgment that is not void.” (Kremerman v. White (2021) 71 Cal.App.5th 358, 369.) “Generally, defendants have six months from entry of judgment to move to vacate. [Citation.] But, if ‘the judgment is void on its face, then the six month limit set by section 473 to make other motions to vacate a judgment does not apply. [Citation.]” (Id. at p. 369-70.)

“A judgment ‘is considered void on its face only when the invalidity is apparent from an inspection of the judgment roll or court record without consideration of extrinsic evidence.’ [Citation.] When a default judgment has been taken, the judgment roll consists of ‘the summons, with the affidavit or proof of service; the complaint; the request for entry of default ..., and a copy of the judgment.’ (§ 670, subd. (a).) If the invalidity can be shown only through consideration of extrinsic evidence, such as declarations or testimony, the order/judgment is not void on its face. [Citation.]” (Kremerman v. White, supra, 71 Cal.App.5th at p. 370.)

II. Analysis

1. Plaintiff Lacks Capacity to Sue

Plaintiff/moving party in this action is California Company, LLC. This entity does not currently exist in the California Secretary of State records. To any extent it existed in the past, it appears to have been completely dissolved or suspended as of April 2019. (Hunt Decl. ¶2.) As a threshold matter, Plaintiff must first demonstrate it is an entity that has capacity to bring this motion before the Court. It hasn’t done so. For this simple reason alone, this motion is DENIED.

2. This Motion is Untimely

As an alternative matter, this motion appears to be untimely in certain aspects. This action was dismissed on December 6, 2018, which required this motion to be filed by June 6, 2018, to be within the standard six-month date set forth in Code of Civil Procedure, section 473 (b). Plaintiff did not file its moving papers until August 4, 2026. As a result, “[o]nce six months have elapsed since the entry of a judgment, ‘a trial court may grant a motion to set aside that judgment as void only if the judgment is void on its face.’ [Citation].” (Cruz v. Fagor America, Inc. (2007) 146 Cal.App.4th 488, 496.) See, Code of Civil Procedure, section 473(d). This Court understands that this is the section upon which this motion is based, and that there is no per se requirement of timeliness, if there was a void order in then first instance. However, such is not the case here.

3. This Judgment is Not Void on Its Face

Here, Plaintiff has not demonstrated that the judgment is void on its face in order to be eligible for relief under subsection (d). Plaintiff does not indicate that the Court’s record is incorrect. Instead, Plaintiff seeks to introduce extrinsic evidence to assert Plaintiff’s lack of knowledge of its own action. Since the invalidity, should one exist, is only shown through consideration of extrinsic evidence, the judgment is not void on its face. (See Kremerman v. White, supra, 71 Cal.App.5th at p. 370.) Therefore, the dismissal is not void on its face.

Additionally, “[t]he trial court has inherent power to correct clerical errors in its records, whether made by the clerk, counsel or the court itself, ‘so that such records will conform to and speak the truth.’” (Commonwealth Land Title Co., supra, 175 Cal.App.3d at p.531.) “A clerical error, as opposed to a noncorrectable judicial error, is one that is made inadvertently.” (Ibid., [italics added].) “‘The term “clerical error” covers all errors, mistakes, or omissions which are not the result of the exercise of the judicial function. If an error, mistake, or omission is the result of inadvertence, but for which a different judgment would have been rendered, the error is clerical and the judgment may be corrected’” (Estate of Douglas (2022) 83 Cal.App.5th 690, 695.) In contrast, “[a] judicial error is the deliberate result of judicial reasoning and determination.” (Conservatorship of

Tobias (1989) 208 Cal.App.3d 1031, 1035.) Plaintiff does not challenge that Plaintiff failed to appear on December 6, 2018, and as a result, the action was dismissed. There appears no clerical error in the record.

Further, a judgment or order is “void” only “when the court entering that judgment lacked jurisdiction in a fundamental sense due to the entire absence of power to hear or determine the case resulting from the absence of authority over the subject matter or the parties.” (People v. N. River Ins. Co. (2020) 48 Cal.App.5th 226, 233 [citations omitted].) However, Plaintiff does not challenge this Court’s authority over the subject matter or the parties.

4. There isn’t an Adequate Showing for this Court to Otherwise Exercise its Equitable Powers of Relief

Last, but not least, Plaintiff urges this Court to exercise its equitable powers to grant the requested relief due to “extrinsic fraud/mistake and attorney abandonment.” In summary fashion, Plaintiff states that it did not discover these fraudulent events until “early September 2024 upon reviewing the Court docket.” Motion, 3:12-13. This contention seems dubious at first glance.

So, the Plaintiff did nothing for almost six years to see what happened to its case? Moreover, is such a lack of due diligence supposed to invoke this Court’s inherent equitable powers? [FN 2] Last, but not least, even by the Plaintiff’s own position, it waited two years to take any formal action whatsoever from their claimed “discovery.” A lack of due diligence is a factor for a court to consider in determining whether to exercise its inherent equitable powers to grant the requested relief.

Under the facts and circumstances of this particular case, this Court respectfully and understandably declines to do so.

Accordingly, Plaintiff’s Motion to Vacate the December 6, 2018, Dismissal is DENIED WITH PREJUDICE.

IT IS SO ORDERED.

Dated: August 31, 2026 _____

Randolph M. Hammock
Judge of the Superior Court

FN 1 - The moving papers attest to service on William C. Fleming, Jr., Esq. via email. However, this court’s records demonstrate that the official attorney of record for the defendants was Richard A. Moss, Esq. of the Moss Law Group in Pasadena. Interestingly enough, the Court did also note that apparently Mr. Fleming “appeared” on behalf of Mr. Moss at the last hearing when this case was dismissed. See, Minute Order, 12/6/18. Be that as it may, that fact doesn’t make Mr. Fleming the official attorney of record for the defendants. Hence, there appears no reasonable attempt to actually serve this motion on the defendants’ actual attorney of record. That being said, the point is somewhat moot since the motion is being denied with prejudice in any case.

FN 2 - Perhaps this can be explained by the statement of defendants’ counsel that “the manager for the Plaintiff was indicted and has absconded the country”? See, Minute Order, 12/6/18. Whether that statement was true or not is not dispositive to this motion, since there is no such actual evidence, other than this statement, to corroborate same. Of course, if it is true that either Janek Hunt and/or Munir Uwaydah (both of whom have submitted declarations in support of this motion) are currently fugitives from justice, perhaps relief is not available to their company due to the disentanglement doctrine? This remains to be seen. Of course, this Court also understands that the defendants may also not be necessarily entitled to claim that equity is in their favor in this matter, given the fact that this case was stayed for a considerable time period due to Defendant Stevens’ own personal criminal proceedings. See, Notice of Status of Concurrent Criminal Matter, 9/20/17.